

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUPP062398: JAIME RAMIREZ, AN INDIVIDUAL vs CITY OF SIMI VALLEY, A
PUBLIC ENTITY, et al.
07/22/2026 in Department 20
Demurrer by County of Ventura**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant County of Ventura's ("Defendant") Demurrer to the Complaint

Tentative:

1. Defendant's Request for Judicial Notice is GRANTED, in part. The Court takes judicial notice of Streets and Highways Code sections 418, 83, 90, and 91 identified in sections (1) and (2) of the request. The Court DENIES the request to take judicial notice of the matters set forth in sections (3) and (4).

2. Defendant's demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e) is SUSTAINED, with leave to amend.

Plaintiff alleges the incident in suit occurred "at or near CA118 westbound approaching Exit 22, Madera Rod., Simi Valley, CA 93065." "[B]efore governmental tort liability may be imposed for a dangerous condition, the public entity must either own or control the public property at issue at the time of the injury." (*Goddard v. Department of Fish & Wildlife* (2015) 243 Cal.App.4th 350, 366 citing to *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.3d 379, 383.) Streets and Highways Code section 418, specifically designates Route 118 as a State Route. State Routes are under the jurisdiction and control of the State. Therefore Plaintiff's pleaded generalized conclusions that the County owned or controlled SR 118 are insufficient to state a claim for

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dangerous condition of public property. In his opposition, Plaintiff appears to concede that the State owns and controls SR 118 but alludes to agreements that may exist between the State and the County for the County's "ownership, operation, control and/or maintenance of the freeway."

Plaintiff is granted leave file and serve a First Amended Complaint to the extent he can do so in accordance with Code of Civil Procedure section 128.7(b) and may do so on or before August 3, 2026.

Defendant shall give notice.